



My Life Services

EMPLOYEE HANDBOOK

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1 About This Handbook

This Employee Handbook provides employees with a general overview of the policies, benefits and rules of employment with My Life Services (“MLS” or the “Company”). We expect each employee to read this handbook carefully, as it is a valuable reference for understanding your job and the Company.

This handbook cannot anticipate every situation, and if you would like further information or have questions about any of the policies and procedures outlined in this handbook, please feel free to bring them to the attention of MLS management. Failure to adhere to Company policies may result in discipline up to and including termination.

The Company reserves the right to unilaterally change, rescind, delete or augment the provisions of this handbook – other than the employment at-will provision – in the Company’s sole discretion. The Company will reasonably attempt to notify employees of policy changes if and when they occur. This handbook supersedes all previous handbook editions, updates, amendments and addendums.

2 Employment Practices

2.1 At-Will Employment

All employment with the Company is at-will. To the maximum extent allowed by law, either the Company or the employee can terminate employment with the Company with or without cause, and with or without notice, at any time.

No one except the Company’s President has the authority to enter into any employment agreement with an employee for a specified period of time. Additionally, the Company’s President can alter an employee’s at-will status only by signing a written agreement with the employee that expressly specifies the Company’s intent to employ the employee for a specified period of time.

This handbook provision regarding at-will employment shall not be construed as a change in policy but merely as an express statement of past and present policy. This provision constitutes an integrated and binding agreement with respect to the at-will nature of the employment relationship. No prior or other oral or written understanding shall be of any force or effect with respect to the at-will nature of the employment relationship.

2.2 Equal Employment Opportunity

The Company is committed to equal employment opportunity. The Company does not make work-related decisions – including but not limited to hiring, training, assignment, promotion, transfer, compensation, discipline or termination – based on any legally protected characteristic or in an unlawful manner. The Company also prohibits unlawful discrimination based on the perception that anyone has any legally protected characteristic, or is associated with a person who has or is perceived as having any such characteristic.

Pay discrimination between or among employees performing substantially similar work based on gender, race or ethnicity, as defined by the California Fair Pay Act and federal law, is prohibited. Pay differentials may be valid in certain situations defined by law. Employees will not be retaliated against for inquiring about or discussing wages.

Additionally, as required by applicable law, the Company will engage in a prompt, good faith, interactive process with applicants and employees who require reasonable accommodations, and will attempt to reasonably accommodate such applicants and employees as required by law. MLS encourages applicants and employees to initiate this interactive process promptly with MLS whenever such accommodations may be required.

Any applicants or employees with concerns about equal employment opportunities should contact Company management. The Company does not permit retaliation against individuals who make complaints or cooperate in investigations.

2.3 Mandatory Abuse Reporting

Employees must report to appropriate agencies any suspected or known dependent adult or elder abuse.

MLS has a ZERO TOLERANCE FOR CLIENT ABUSE OR NEGLECT POLICY. Every employee is a mandated reporter with a duty to report any observed, or any knowledge of, an incident that reasonably appears to be physical abuse, abandonment, abduction, isolation, financial abuse, or neglect; or is told by an elder or dependent adult that he or she has experienced behavior, including an act or omission, constituting physical abuse, abandonment, abduction, isolation, financial abuse, or neglect; or reasonably suspects that abuse, shall report the known or suspected instance of abuse immediately or as soon as practicably possible. If employees have any questions on how to report abuse, please contact MLS's office. Don't delay immediate reporting by telephone to 911, Adult Protective Services, and to proper authorities, with written report to follow.

2.4 Policy Against Harassment, Discrimination and Retaliation

MLS as your employer has an affirmative duty to take reasonable steps to prevent and promptly correct discriminatory and harassing conduct, and to create a workplace environment that is free from employment practices prohibited by law.

Specifically, MLS prohibits illegal discrimination and harassment in employment based on your actual or perceived:

- Ancestry
- Age (40 and above)
- Color
- Disability (physical and mental, including HIV and AIDS)
- Genetic information
- Gender, gender identity, or gender expression
- Marital status
- Medical condition (genetic characteristics, cancer or a record or history of cancer)
- Military or veteran status
- National origin (includes language use and possession of a driver's license issued to persons unable to prove their presence in the United States is authorized under federal law.)
- Race
- Religion (includes religious dress and grooming practices)

- Sex (includes pregnancy, childbirth, breastfeeding and/or related medical conditions)
- Sexual orientation
- Any combination of protected characteristics

The law prohibits co-workers, third parties, supervisors, managers and anyone with whom you come into contact during your employment from engaging in conduct prohibited by law.

If you believe that you have been harassed, discriminated or retaliated against, or treated in an unlawful manner, you should file a complaint with your supervisor at MLS. If you do not wish to notify your supervisor, you may contact the Company's President or Human Resources representative either verbally or in writing to file your complaint.

In response to your complaint, MLS will

- designate the complaint as confidential to the extent possible;
- provide a timely response;
- ensure an impartial and timely investigation by qualified personnel;
- document and track the complaint and investigation process for reasonable progress;
- provide appropriate options for remedial actions and resolutions; and
- ensure timely closure of the complaint and investigation.

You also may lodge complaints with the California Civil Rights Department (formerly the California Department of Fair Employment & Housing) and the U.S. Equal Employment Opportunity Commission.

Supervisors must report any complaints of misconduct to MLS and to the Company's President and Human Resources representative as soon as possible so MLS can try to resolve the claim internally.

When MLS receives allegations of misconduct, it will conduct a fair, timely, and thorough investigation that provides all parties appropriate due process and reaches reasonable conclusions based on the evidence collected.

MLS will maintain confidentiality of the complaint and investigation to the extent possible, but the investigation may not be completely confidential.

At the end of the investigation if the investigator finds misconduct, MLS will take appropriate remedial measures.

You will not be exposed to retaliation as a result of lodging a complaint or participating in any workplace investigation.

2.5 Workplace Violence and Threats of Violence

The Company does not tolerate any violence or threats of violence in the workplace. Employees who have experienced or know of violence, abuse, threats or other improper conduct on Company property or at clients' homes or facilities should report this information

immediately to Company management. If you do not wish to notify your immediate supervisor, you may contact the Company's President or Human Resources representative either verbally or in writing to file your complaint. Further, the Company prohibits retaliation against any employee who makes a complaint or cooperates in an investigation regarding any such improper conduct. Any employee who engages in such improper conduct may be subject to discipline up to and including termination.

2.6 Compliance with Laws and Driving Policy

Employees must obey all applicable laws, regulations and MLS's policies in the conduct of their employment for MLS. This requirement includes but is not limited to complying with all applicable vehicle code and traffic laws, rules and regulations. If an employee drives in the course of his or her employment with MLS, he or she must drive safely and in compliance with all laws, codes, rules, regulations and MLS's policies, including but not limited to not engaging in distractions while driving. Employee further agrees that if he or she drives in the course of his or her employment with MLS, he or she will maintain a valid and current driver's license and insurance as required by law, as well as an acceptable driving record, and provide proof of these items to MLS upon MLS's request. Further, if he or she drives his or her own vehicle in the course of his or her employment with MLS, Employee agrees to maintain a valid and current registration on the vehicle and properly maintain the vehicle, and provide proof of these items to MLS upon MLS's request. Employee agrees to immediately notify MLS of any changes to his or her driving record, driver's license, registration, insurance, vehicle maintenance or ability to drive for any reason.

3 General Policies and Procedures

3.1 Personnel Files and Payroll Records

MLS will maintain and allow access to employee personnel files and payroll records as required by law. The Company reserves the right to audit employee personnel files. Employees are required to provide updated information to the Company and to keep their contact and other information with the Company current.

3.2 Pay Periods

MLS will pay employees bi-monthly (twice a month). When a payday falls on a holiday, MLS will pay employees on the first working day after the holiday. MLS's work week begins Monday at 12AM and end Sunday at 11:59PM.

3.3 Timekeeping

Accurately recording time worked is the responsibility of every non-exempt employee. Federal and state laws require the Company to keep an accurate record of time worked for non-exempt employees in order to calculate employee pay and benefits. Time worked is all the time actually spent on the job performing assigned duties and according to applicable law.

Non-exempt employees should accurately record the time they begin and end their work, as well as the beginning and ending time of any non-compensated meal or other non-working

period(s), if applicable. They also should record the beginning and ending time of any split shift or departure from work for personal reasons. The Company prohibits employees from working “off the clock;” you must record all the time you work. Failing to record your time could subject you to discipline, up to and including termination.

Altering, falsifying, tampering with time records, signing another employee in or out, or recording time on another employee's time record may result in disciplinary action, up to and including termination of employment.

3.4 Overtime

Company management may ask employees to work beyond their regularly scheduled hours. Although Company management may attempt to provide employees with advance notice of required additional hours, this may not always be possible.

An employee must have approval in advance from Company management before performing any unscheduled or overtime work. Working any additional hours other than those previously scheduled without advance approval from Company management may subject the employee to discipline up to and including termination.

The Company will pay non-exempt employees overtime as required by law. Overtime pay is based on actual hours worked. Paid or unpaid time off, including but not limited to holidays, sick leave or vacation days, or leaves of absence will not be considered hours worked for purposes of performing overtime calculations. To the maximum extent allowed by law, any holiday pay premium, if and when applicable, will not be included in a non-exempt employee's regular rate for overtime calculation purposes. Additionally, to the maximum extent allowed by law, non-exempt employees will not receive a holiday pay premium, if any, during any portion of any holiday when the non-exempt employee is entitled to overtime compensation.

3.5 Holidays

Subject to the terms and conditions of this handbook, MLS will pay non-exempt employees time and a half their regular hourly wage for hours worked on the following holidays: New Year's Day; Memorial Day; July 4th; Labor Day; Thanksgiving; and Christmas.

Only hours worked during the aforementioned holidays are eligible for holiday compensation. However, to the maximum extent allowed by law, any holiday pay premium, if and when applicable, will not be included in a non-exempt employee's regular rate for overtime calculation purposes. Additionally, to the maximum extent allowed by law, non-exempt employees will not receive a holiday pay premium, if any, during any portion of any holiday when the non-exempt employee is entitled to overtime compensation.

MLS will provide full-time exempt employees with paid time off on the aforementioned holidays, provided the employee is employed with MLS on the work day before and the work day after an aforementioned holiday.

3.6 Expense Reimbursement

MLS will reimburse employees for expenses, including but not limited to mileage and cell phone and technology usage, incurred within the conduct of their employment. Such expenses should be reasonable and should be pre-approved by the Company in advance of the expense. Employees should submit expenses to MLS on a weekly basis for reimbursement.

3.7 Travel Time

MLS will pay employees for travel time and reimburse expenses for travel in the course and scope of employment. To the maximum extent allowed by law, this generally does not include paying for travel time or reimbursing for expenses for commuting from home to the employee's initial worksite or from the employee's final worksite to home unless required by law. **Employees should log their travel time on their time records and submit their mileage and or other travel expenses to the Company.** If an employee takes public transportation to travel during the course and scope of employment, the employee should submit the cost of public transportation for reimbursement.

3.8 Payroll

The Company is required by law to make deductions from employees' pay for Social Security, Medicare, and California State Disability Insurance. Additionally, employees and the Company may mutually agree to withhold the employee's share of personal federal and or state income tax. Changes in filing status and the number of claimed allowances must be made by signing and completing new federal and state tax forms and submitting these forms to the Company.

The Company makes reasonable, good faith efforts to pay employees accurately and promptly according to applicable law, and to avoid improper or unlawful deductions from employees' paychecks. If there is an error in your paycheck or if you believe there has been an improper deduction from your paycheck, please bring it to the immediate attention of your supervisor. The Company will investigate the situation and remedy the matter if necessary, including by reimbursing the employee if appropriate, as quickly as possible.

Employees may request the pay scale for their position.

3.9 Cell Phones and Technology Stipend

MLS does not require employees to have, use or communicate via cell phones. The Company does not require a cell phone for employment with the Company.

MLS will provide a stipend of \$30 per month per employee to reimburse employees for their business-related use of their personal technology, including but not limited to cell phones, tablets, smart watches, computers and home internet and electricity. If an employee believes this stipend does not fully reimburse the employee's business-related use of the employee's personal technology, the employee should contact MLS management immediately to discuss potential additional reimbursement. If an employee does not so contact MLS management, the employee and MLS agree that MLS's stipend fully reimburses the employee for all business-related expenses pertaining to the employee's personal technology.

4 Job Duties for Caregivers

4.1 Personal Attendant Companion Caregivers Working In Private Homes

Personal attendant companion caregivers work in the private homes of MLS clients. Such a caregiver is referred to herein as a "PAC Caregiver." PAC Caregivers perform non-medical companionship care for clients who by reason of advanced age, physical disability, or

mental deficiency need supervision. When working in the private home of a MLS client, PAC Caregivers serve as personal attendants under California Wage Order 15.

During every shift that PAC Caregivers work for MLS, they ALWAYS must spend at least 80% of their work time supervising, feeding and dressing MLS's clients. Additionally, during every shift PAC Caregivers work for MLS, they must NEVER spend more than 20% of their work time on work other than supervising, feeding or dressing MLS's clients. Any housekeeping should only relate to areas of the residence that the client uses, and regardless, PAC Caregivers must never spend more than 20% of their working time per shift on housekeeping.

PAC Caregivers are entitled to overtime for all hours worked above 9 in a work day and for all hours worked above 40 in a work week. However, if the PAC Caregiver works pursuant to a voucher issued through a regional center, or works for MLS clients who receive authorization for services through, by or from a regional center, that caregiver is only entitled to overtime for all hours worked above 40 in a work week. PAC Caregivers are not entitled to meal or rest periods or any other overtime not listed in this section.

4.2 Other Caregivers

Any caregiver who does not work in a client's private home and or who is not performing the duties of a PAC Caregiver is referred to as a non-personal attendant companion caregiver (a "NPAC Caregiver"). NPAC Caregivers are entitled to overtime as well as meal and rest periods.

NPAC Caregivers are entitled to overtime for (1) work of more than eight hours in a work day; (2) work of more than 40 hours in a work week; and (3) the first eight hours of work on a seventh consecutive day of work in a work week for MLS. NPAC Caregivers are entitled to doubletime for work of more than 12 hours in a work day and or for work of more than eight hours on a seventh consecutive day of work in a work week for MLS.

Every NPAC Caregiver must take a paid rest break, during which the NPAC Caregiver shall be relieved of all duties, of at least 10 minutes during every four hours (or major fraction thereof) that the NPAC Caregiver works for MLS in a work day. This rest period insofar as practical shall be in the middle of each four hour period or major fraction thereof. Employees do not need to clock in and out for rest breaks. Employees can leave the work premises during rest breaks.

Additionally, every NPAC Caregiver must take an unpaid meal period, during which the NPAC Caregiver shall be relieved of all duties, of at least 30 minutes for every five hours the NPAC Caregiver works for MLS in a work day. Employees can leave the work premises during meal periods. NPAC Caregivers who are eligible for meal periods agree to take a first meal period no later than the end of the NPAC Caregiver's fifth hour of work. If a NPAC Caregiver works 10 hours in a work day, the NPAC Caregiver agrees to take a second meal period no later than the end of the NPAC Caregiver's 10th hour of work.

However, when a work period of not more than six hours will complete the day's work, the meal period may be waived by mutual consent of MLS and a NPAC Caregiver. NPAC Caregivers wishing to waive such a meal period should contact MLS management.

Additionally, when the nature of the work prevents a NPAC Caregiver from being relieved of all duty, MLS and a NPAC Caregiver may enter into a written agreement providing for an on-duty meal period. A NPAC Caregiver may revoke such an on-duty meal period agreement in writing at any time. Please contact MLS management if you believe that an on-duty meal period is appropriate for your work circumstances.

4.3 Policies Relating To All Caregivers

All caregivers (PAC Caregivers and NPAC Caregivers) must comply with the following policies. Caregivers understand and agree that caregiving jobs may involve caring for clients who, due to their mental condition, may be violent. It is the caregiver's responsibility to protect such clients from injuring themselves or others. Thus, by accepting a job as a caregiver, to the maximum extent allowed by law, caregivers assume the risk that clients may be violent and or that the caregiver may be injured. If a caregiver does not feel comfortable performing these duties or accepting the risk of potential injury, the caregiver should contact MLS management immediately. If the caregiver does not so notify MLS management, the caregiver agrees that he or she can perform the essential functions of the caregiver job with or without reasonable accommodation and understands and accepts the risk of potential injury.

Caregivers who do not reside with the client should leave a client's home or other worksite when the caregiver's shift ends. Caregivers who do not reside with the client should not remain at a client's residence or other worksite during non-working hours. However, if a caregiver remains at a client's residence during non-working hours, the caregiver understands and agrees that (1) remaining on the premises is strictly voluntary and of the caregiver's own volition; (2) the caregiver is not working or on call during these non-working hours; (3) the caregiver is relieved of all duties and not required to remain on the premises or respond to the client during non-working hours; and (4) the caregiver can leave the premises at any time and for any duration during the caregiver's non-working hours. Caregivers agree to notify MLS immediately and record on their time record any time worked during non-working hours. MLS will pay caregivers for any hours worked during non-working hours.

On a daily basis, caregivers agree to track the beginning and ending times of their work shifts, as well as the beginning and ending times of any unpaid meal or other unpaid non-working time, if any and as applicable, and their total hours worked. Caregivers also agree to document any expenses they incur in the course and scope of their employment with MLS, including but not limited to mileage and or cell phones, and to submit weekly all records and receipts for those expenses to MLS for reimbursement.

MLS will pay employees for travel time and reimburse expenses for travel in the course and scope of employment. To the maximum extent allowed by law, this generally does not include paying for travel time or reimbursing for expenses for commuting from home to the employee's initial worksite or from the employee's final worksite to home unless required by law. Employees should log their travel time on their time records and submit their mileage and or other travel expenses to the Company. If an employee takes public transportation to travel during the course and scope of employment, the employee should submit the cost of public transportation for reimbursement.

If any of the terms or working conditions described in this Job Duties for Caregivers policy are not followed during any shift an employee works for MLS, the employee agrees to immediately notify MLS. If the employee does not promptly notify MLS otherwise, the employee and MLS agree that all the working conditions described in this Job Duties for Caregivers policy were met during every shift the employee works for MLS.

Finally, employees must comply with all applicable laws and regulations, and all MLS policies and procedures during the course and scope of their employment with MLS.

5 Other Employees

5.1 Exempt Employees (Other Than Caregivers)

Employees who are exempt from overtime under applicable federal and state law will receive a fixed salary. This fixed salary is designed to compensate exempt employees for all hours worked per week. This fixed salary is generally not subject to deductions except as allowed by law. Exempt employees also are not entitled to the meal and rest periods required for non-exempt employees.

5.2 Non-Exempt Employees (Other Than Caregivers)

Employees who are not exempt from federal and state overtime will be paid hourly. Additionally, non-exempt employees will receive overtime and all applicable rest and meal periods, if any, as required by law.

Non-exempt employees are entitled to overtime for (1) work of more than eight hours in a work day; (2) work of more than 40 hours in a work week; and (3) the first eight hours of work on a seventh consecutive day of work in a work week for MLS. Non-exempt employees are entitled to doubletime for work of more than 12 hours in a work day and or for work of more than eight hours on a seventh consecutive day of work in a work week for MLS.

Every non-exempt employee must take a paid rest break, during which the employee shall be relieved of all duties, of at least 10 minutes during every four hours (or major fraction thereof) that the non-exempt employee works for MLS in a work day. This rest period insofar as practical shall be in the middle of each four hour period or major fraction thereof. Employees do not need to clock in and out for rest breaks. Employees can leave the work premises during rest breaks.

Additionally, every non-exempt employee must take an unpaid meal period, during which the non-exempt employee shall be relieved of all duties, of at least 30 minutes for every five hours the non-exempt employee works for MLS in a work day. Employees can leave the work premises during meal periods. Non-exempt employees who are eligible for meal periods agree to take a first meal period no later than the end of the non-exempt employee's fifth hour of work. If a non-exempt employee works 10 hours in a work day, the non-exempt employee agrees to take a second meal period no later than the end of the non-exempt employee's 10th hour of work.

However, when a work period of not more than six hours will complete the day's work, the meal period may be waived by mutual consent of MLS and a non-exempt employee. Eligible employees wishing to waive such a meal period should contact MLS management.

Additionally, when the nature of the work prevents a non-exempt employee from being relieved of all duty, MLS and a non-exempt employee may enter into a written agreement providing for an on-duty meal period. A non-exempt employee may revoke such an on-duty meal period agreement in writing at any time. Please contact MLS management if you believe that an on-duty meal period is appropriate for your work circumstances.

If a non-exempt employee has not waived a meal period or entered into an on-duty meal period agreement, the non-exempt employee must clock in and out for meal periods and or other unpaid non-working time. Non-exempt employees shall immediately notify MLS if on any working day they do not take all the aforementioned required rest periods within the specified time periods and for the required duration of such rest periods. Additionally, non-exempt

employees shall immediately notify MLS if on any working day they do not take all the aforementioned required meal periods unless they have waived the meal period or entered into an on-duty meal period agreement. If a non-exempt employee does not promptly notify MLS otherwise, the non-exempt employee and MLS agree that all the working conditions described in this policy were met during every shift the non-exempt employee works for MLS.

6 Work Performance

6.1 Performance Reviews

Employees are encouraged to meet with their supervisor or Company management as soon as possible if they have concerns or require additional guidance in performing their job duties. Supervisors and or Company management will attempt to meet with each employee as often as the Company feels is reasonable and necessary to review the employee's performance, goals and any concerns the employee may have.

6.2 Attendance and Punctuality

Punctuality and regular attendance are important to MLS's efficient operation. The Company expects employees to be at their designated work location on time and on schedule. Personal issues requiring time away from your work, such as doctor's appointments or other matters, should be scheduled during your non-working hours if possible. To the maximum extent allowed by law, if an employee will be late, must leave early, or is unable to work as scheduled, the employee must contact his or her supervisor as soon as possible and according to the policies in this handbook. If you are absent for several days, you must notify your supervisor each day. As allowed by law, unexcused absences or tardiness may subject the employee to discipline, up to and including termination.

If an employee has three consecutive unexcused absences and has not provided proper notification to the Company, to the maximum extent permitted by law, the Company may assume that the employee has abandoned his or her position and may be treated as having voluntarily terminated employment with the Company.

6.3 Substance Abuse and Testing Policy

The Company is committed to workplace safety and the health and safety of its employees and clients. Regardless of what employees may do during their non-working hours, employees must never report to work intoxicated or otherwise impaired, or become intoxicated or otherwise impaired during work hours.

To the maximum extent allowed by law, the Company prohibits employees' use, possession, or working under the influence of marijuana or alcohol during work hours; on Company property; at a client's home or facility; or while conducting Company business at any location. The Company also prohibits employees' possession, use, distribution, purchase, sale, transfer, manufacture, or working under the influence of illegal drugs during work hours; on Company property; at a client's home or facility; or while conducting Company business at any location. Employees who violate this policy may be subject to discipline, up to and including termination. The prohibition against the use or possession of alcohol does not apply to Company sponsored events where the Company may serve alcohol.

To ensure compliance with this policy, the Company reserves the right to conduct the following screening as allowed by law:

- **Pre-Employment Testing:** If the Company conducts pre-employment screening for illegal drugs (excluding non-psychoactive cannabis metabolites), failure to pass the drug screening examination may result in the termination of the hiring process for the prospective employee as allowed by law.
- **Post-Accident Testing:** As allowed by law, the Company may require an employee to undergo testing for alcohol or illegal drugs (excluding non-psychoactive cannabis metabolites) when an employee has been involved in a work-related accident that is (1) of a serious nature; or (2) which requires medical attention; or (3) results in injury to the employee or another person, or property damage to the employer, client, the employee, or another person or entity.
- **Reasonable Suspicion Testing:** If the Company has a reasonable suspicion that during working hours (1) an employee possesses marijuana, illegal drugs, drug paraphernalia or alcohol; (2) marijuana, illegal drugs, drug paraphernalia, or alcohol are found in or near the employee's work area; or (3) the employee is impaired by alcohol, marijuana or illegal drugs, the Company may test the employee for alcohol or illegal drugs (excluding non-psychoactive cannabis metabolites) according to applicable law. "Reasonable suspicion" may arise from but is not limited to observation of an employee's physical symptoms, erratic behavior, lapses in performance, or inability to appropriately respond to questions, or a complaint or report of the same or similar behavior or a policy violation.
- **Random or Other Testing:** Some client facilities may require random or other testing as a condition of working in the facility. Employees working at such facilities may be required to submit to random or other tests as allowed by law.

Employees with a positive test result in violation of this policy may be subject to discipline up to and including termination according to applicable law. Additionally, refusal to comply or fully cooperate with the Company's request for screening or investigation, interfering with such screening or investigation, or tampering with the results of any such screening or investigation, may be grounds for discipline up to and including termination.

Note: No element of this policy is intended to or will be enforced to violate any legally protected disability, medical condition, characteristic or practice. MLS will engage in a good faith, interactive process and provide reasonable accommodations to disabled applicants or employees as required by law. Additionally, the Company does not take adverse action for legal off-duty use of alcohol or legal drugs unless such use results in on-duty impairment or otherwise violates job safety standards. If you have concerns or questions about the use or enforcement of this policy, please contact Company management as soon as possible.

6.4 Smoking

Our Company is committed to providing a safe and healthy environment for employees, clients and visitors. Smoking is not allowed in clients' homes or facilities, or in the Company's office.

6.5 Workplace Attire and Appearance

All employees are expected to dress professionally and appropriately for their work environments.

Company management in its sole discretion as allowed by law will make the final determination as to the appropriateness of an employee's dress and appearance. Employees should consult with Company management if they have questions as to what constitutes appropriate attire or appearance or this policy in general. Non-compliance with this policy may be grounds for discipline up to and including termination of employment.

Note: No element of this policy is intended to or will be enforced to violate any legally protected characteristic or practice. If you have concerns or questions about the use or enforcement of this policy, please contact Company management as soon as possible.

7 Leave Policies

7.1 General Policies

Employees may be eligible to take leaves of absence for medical, disability or other reasons under applicable laws. To the maximum extent allowed by law, employees who are interested in taking a leave of absence must provide Company management with at least 30 days' notice (or more notice if allowed or required by law) if the need for leave is reasonably foreseeable, or as soon as possible if the need for leave is not reasonably foreseeable. Employees in military service and their family members will be granted leaves of absence as required by law.

To the maximum extent allowed by law, employees requesting a leave of absence may be required to provide a certification (medical or otherwise) as to the reason for the leave, the estimated beginning date of the leave, and estimated duration of the leave. Employees should report any changes in this information to Company management as soon as possible.

The Company reserves the right to request and obtain from the employee additional certifications during the employee's leave in order to obtain updates on the reason for and duration of the leave of absence according to applicable law. To the maximum extent allowed by law, any employee requests for extensions of leave must be made in writing with documentation as to the reason for the requested extension prior to the termination of the leave.

The Company requires employees on leaves of absence to use any paid time off available, if any, to them during the leave of absence to the maximum extent allowed by law. However, the Company does not require employees to use paid time off before accessing California Paid Family Leave benefits. Unless required by applicable law (and after the exhaustion of any paid time off required to be used during the leave), leaves of absence will be unpaid.

Unless required by applicable law, employees will not accrue any benefits, including but not limited to paid time off and holiday pay, if any, during unpaid leaves of absence. However, subject to the terms, conditions, and limitations of the applicable plans, if and as required by law, the Company will continue to provide otherwise eligible employees with health and other insurance benefits, if any, for the full period of the approved leave, subject to any employee contribution normally required for coverage for the employee and other eligible persons.

Employees may not accept other employment while on leave according to applicable law. To the maximum extent permitted by law, acceptance of other employment while on leave is grounds for discipline, up to and including termination. Any misrepresentations in an employee's leave application also may subject the employee to discipline, up to and including termination.

Employees on leaves of absence should provide as much notice as possible to Company management of the date of their expected return to work. Although the Company will make reasonable efforts to reinstate employees to their same or comparable positions for which they are qualified upon their return from a leave of absence, unless required by applicable law, the Company does not guarantee employees reinstatement to employment from leaves of absence.

To the extent permitted by law, the Company reserves the right to request a fitness for duty certificate from employees before they return to work from a leave of absence. Subject to applicable law, the Company may terminate employees who do not return to employment at the end of their leave of absence.

7.2 Family and Medical Leave Act

The Family and Medical Leave Act (FMLA) is a federal law that provides eligible employees with job-protected leave for qualifying family and medical reasons. The U.S. Department of Labor's Wage and Hour Division (WHD) enforces the FMLA for most employees.

What is FMLA leave?

Eligible employees can take up to 12 workweeks of FMLA leave in a 12-month period for:

- The birth, adoption or foster placement of a child with you,
- Your serious mental or physical health condition that makes you unable to work,
- To care for your spouse, child or parent with a serious mental or physical health condition, and
- Certain qualifying reasons related to the foreign deployment of your spouse, child or parent who is a military servicemember.

An eligible employee who is the spouse, child, parent or next of kin of a covered servicemember with a serious injury or illness may take up to 26 workweeks of FMLA leave in a single 12-month period to care for the servicemember.

You have the right to use FMLA leave in one block of time. When it is medically necessary or otherwise permitted, you may take FMLA leave intermittently in separate blocks of time, or on a reduced schedule by working less hours each day or week.

FMLA leave is not paid leave, but you may choose, or be required by your employer, to use any employer-provided paid leave if your employer's paid leave policy covers the reason for which you need FMLA leave.

Am I eligible to take FMLA leave?

You are an eligible employee if all of the following apply:

- You work for a covered employer,
- You have worked for your employer at least 12 months,
- You have at least 1,250 hours of service for your employer during the 12 months before your leave, and
- Your employer has at least 50 employees within 75 miles of your work location.

Airline flight crew employees have different "hours of service" requirements.

You work for a covered employer if one of the following applies:

- You work for a private employer that had at least 50 employees during at least 20 workweeks in the current or previous calendar year,
- You work for an elementary or public or private secondary school, or
- You work for a public agency, such as a local, state or federal government agency. Most federal employees are covered by Title II of the FMLA, administered by the Office of Personnel Management.

How do I request FMLA leave?

Generally, to request FMLA leave you must:

- Follow your employer's normal policies for requesting leave,
- Give notice at least 30 days before your need for FMLA leave, or
- If advance notice is not possible, give notice as soon as possible.

You do not have to share a medical diagnosis but must provide enough information to your employer so they can determine whether the leave qualifies for FMLA protection. You must also inform your employer if FMLA leave was previously taken or approved for the same reason

when requesting additional leave.

Your employer may request certification from a health care provider to verify medical leave and may request certification of a qualifying exigency.

The FMLA does not affect any federal or state law prohibiting discrimination or supersede any state or local law or collective bargaining agreement that provides greater family or medical leave rights.

What does my employer need to do?

If you are eligible for FMLA leave, your employer must:

- Allow you to take job-protected time off work for a qualifying reason,
- Continue your group health plan coverage while you are on leave on the same basis as if you had not taken leave, and
- Allow you to return to the same job, or a virtually identical job with the same pay, benefits and other working conditions, including shift and location, at the end of your leave.

Your employer cannot interfere with your FMLA rights or threaten or punish you for exercising your rights under the law. For example, your employer cannot retaliate against you for requesting FMLA leave or cooperating with a WHD investigation.

After becoming aware that your need for leave is for a reason that may qualify under the FMLA, your employer must confirm whether you are eligible or not eligible for FMLA leave. If your employer determines that you are eligible, your employer must notify you in writing:

- About your FMLA rights and responsibilities, and
- How much of your requested leave, if any, will be FMLA-protected leave.

Where can I find more information?

Call 1-866-487-9243 or visit dol.gov/fmla to learn more.

If you believe your rights under the FMLA have been violated, you may file a complaint with WHD or file a private lawsuit against your employer in court.

Source: U.S. Department of Labor, Wage and Hour Division, "Your Employee Rights Under the Family and Medical Leave Act" (WH1420, Rev. 04/23), dol.gov/whd/regs/compliance/posters/fmlaen.pdf

7.3 Family Care and Medical Leave (CFRA Leave) and Pregnancy Disability Leave

Under California law, an employee may have the right to take job-protected leave to care for their own serious health condition or a family member with a serious health condition, or to bond with a new child (via birth, adoption, or foster care). California law also requires employers to provide job-protected leave and accommodations to employees who are disabled by pregnancy, childbirth, or a related medical condition.

Family Care and Medical Leave (CFRA)

Under the California Family Rights Act of 1993 (CFRA), many employees have the right to take job-protected leave, which is leave that will allow them to return to their job or a similar job after their leave ends. This leave may be up to 12 workweeks in a 12-month period for:

- The employee's own serious health condition

- The serious health condition of a child, spouse, domestic partner, parent, parent-in-law, grandparent, grandchild, sibling, or someone else with a blood or family-like relationship with the employee (“designated person”)
- The birth, adoption, or foster care placement of a child

If an employee takes leave for their own or a family member’s serious health condition, leave may be taken on an intermittent or reduced work schedule when medically necessary, among other circumstances.

Eligibility. To be eligible for CFRA leave, an employee must have more than 12 months of service with their employer, have worked at least 1,250 hours in the 12-month period before the date they want to begin their leave, and their employer must have five or more employees.

Pay and Benefits During Leave. While the law guarantees only unpaid leave, some employers pay their employees during CFRA leave. In addition, employees may choose (or employers may require) use of accrued paid leave while taking CFRA leave in certain circumstances. Employees on CFRA leave may also be eligible for benefits administered by the Employment Development Department, including Paid Family Leave.

Taking CFRA leave may impact certain employee benefits and an employee’s seniority date. Employees who want more information regarding eligibility for leave and/or the impact of the leave on seniority and benefits should contact Company management.

Pregnancy Disability Leave (PDL)

When an employee is disabled by pregnancy, childbirth, or a related medical condition, the employee is entitled to take a pregnancy disability leave of up to four months (the working days the employee would normally work in one-third of a year, or 17 1/3 weeks), depending on their period(s) of actual disability. If the employee is also eligible for CFRA leave, they have the right to take both pregnancy disability leave and CFRA leave related to the birth of their child.

While an employee is disabled by pregnancy, childbirth, or a related medical condition, the Company will also, as required by law:

- Reasonably accommodate the employee’s medical needs related to pregnancy, childbirth, or related conditions (such as temporarily modifying work duties, providing a stool or chair, or allowing more frequent breaks);
- Transfer the employee to a less strenuous or hazardous position (if one is available) or duties if medically needed because of the pregnancy;
- Provide a reasonable amount of break time and use of a room or other location close to the employee’s work area to express breast milk in private as set forth in the Labor Code; and
- Never discriminate, harass, or retaliate against an employee on the basis of pregnancy.

An employee is entitled to take PDL only for the period of time during which the employee is disabled by pregnancy, a pregnancy-related medical condition, or childbirth, as determined by the employee’s health care provider. PDL may include, but is not limited to, additional or more frequent breaks, time for prenatal or postnatal medical appointments, and doctor-ordered bed rest, and covers conditions such as severe morning sickness, gestational diabetes, pregnancy-induced hypertension, preeclampsia, recovery from childbirth or loss or end of pregnancy, and/or postpartum depression. PDL does not need to be taken all at once and can be taken on an as-needed basis as required by the employee’s health care provider, including intermittent leave or a reduced work schedule.

After an employee informs the Company that the employee needs to take PDL, the Company must guarantee in writing that the employee can return to work in the same or a comparable

position if the employee requests a written guarantee. The Company may require the employee to submit written medical certification from the employee's health care provider supporting the need for the leave.

An employee's leave will be paid or unpaid depending on Company policy for other types of medical leave. An employee may also be eligible for State Disability Insurance, administered by the California Employment Development Department. An employee may choose to use any vacation or other paid time off during PDL, and the Company may require or the employee may choose to use any available sick leave during PDL. The Company is required to continue an employee's group health coverage during PDL at the same level and under the same conditions that coverage would have been provided had the employee continued in employment continuously for the duration of the leave. Taking PDL may impact certain benefits and an employee's seniority date; employees should contact Company management for details.

Reinstatement

Both CFRA leave and pregnancy disability leave guarantee reinstatement to the same position or, in certain instances, a comparable position at the end of the leave, subject to any defense allowed under the law.

Notice and Certification

When possible, employees must provide 30 days' advance notice before taking leave for a foreseeable event, such as the expected birth of a child or a planned medical procedure. For unforeseeable events, employees should notify Company management, at least verbally, as soon as they learn of the need for the leave. Failing to provide notice is grounds for, and may result in, deferral of the requested leave until the employee complies with this notice policy.

The Company may require certification from an employee's health care provider before allowing leave for pregnancy disability, a reasonable accommodation, a transfer, or for the employee's own serious health condition. Except in a medical emergency where there is no time to obtain it, the employee must provide this certification within the time frame the Company requests, unless it is not practicable for the employee to do so despite diligent, good faith efforts. The Company must give the employee at least 15 calendar days to submit the certification. The Company may also require certification from the health care provider of the employee's family member, including a designated person, who has a serious health condition, before granting leave to care for that family member. If an employee does not give the Company notice or written medical certification of the medical need (if required), either in advance or as soon as practicable, the Company may be justified in delaying the employee's reasonable accommodation, transfer, or leave.

Filing a Complaint

If an employee has been subjected to discrimination, harassment, or retaliation at work, or has been improperly denied protected leave under CFRA or PDL, the employee may file a complaint with the Civil Rights Department (CRD): calcivilrights.ca.gov/complaintprocess, Toll Free: 800.884.1684, TTY: 800.700.2320, California Relay Service (711). Employees who have a disability that requires a reasonable accommodation may contact CRD for assistance with a complaint.

Sources: California Civil Rights Department, "Family Care & Medical Leave & Pregnancy Disability Leave" (CRD-100-21ENG, January 2025) and "Your Rights and Obligations as a Pregnant Employee" (CRD-E09P-ENG, January 2025), calcivilrights.ca.gov/posters/required

7.4 Paid Sick, Jury Duty, Witness Appearance, And Designated Person Emergency Leave

An employee will accrue one hour of paid sick, jury duty, witness appearance, and designated person emergency leave (collectively referred to in this Handbook as “paid sick time” or “paid sick leave”) for every 30 hours the employee works for MLS. An employee may begin to use paid sick time (1) after he or she has worked 30 or more days within one year from the commencement of his or her employment for MLS and (2) on or after his or her 90th day of at-will employment with MLS.

An employee may use a maximum of 40 hours or five days (whichever is greater) of paid sick time per year. An employee must use the paid sick time in increments of no fewer than two hours. An employee’s total accrued paid sick time is capped at 80 hours or ten days (whichever is greater). An employee will not and cannot accrue any paid sick time of more than 80 hours or ten days (whichever is greater) at any one time.

If the need for paid sick leave is foreseeable, the employee shall provide reasonable advance notification to MLS. If the need for paid sick leave is unforeseeable, the employee shall provide notice of the need for the leave as soon as practicable to MLS.

7.5 Bereavement Leave

Employees who have worked at least 30 days for MLS may take up to five days off within three months of the death of the employee’s spouse, child, parent, sibling, grandparent, grandchild, domestic partner, or parent-in-law. This Bereavement Leave is unpaid, but employees may use paid sick leave or vacation, if any. The employee, if requested by MLS, within 30 days of the first day of the leave, shall provide documentation of the death of the family member to MLS. Such documentation may include, but is not limited to, a death certificate, a published obituary, or written verification of death, burial, or memorial services from a mortuary, funeral home, burial society, crematorium, religious institution, or governmental agency. MLS shall maintain the confidentiality of any employee requesting Bereavement Leave and any documentation provided to MLS in support of such leave, and MLS shall not disclose such information except to internal personnel or counsel, as necessary, or as required by law.

7.6 Time Off to Vote

California Election Code Notice to California Employees:

If an employee does not have sufficient time outside of working hours to vote at a statewide election, the employee may take off enough working time that, when added to the voting time available outside of working hours, will enable the employee to vote.

No more than two hours of the time taken off for voting shall be paid. The time off for voting shall be only at the beginning or end of the regular working shift, whichever allows the most free time for voting and the least time off from the regular working shift, unless otherwise mutually agreed between the Company and the employee.

If the employee knows or has reason to believe that time off will be necessary to be able to vote on election day, the employee shall give the Company at least two working days’ notice that

time off for voting is desired.

7.7 Lactation Accommodation Policy

The Company will attempt to reasonably accommodate requests for lactation as required by law.

An employee has the right to request lactation accommodation. An employee may do so by contacting her supervisor or the Company's Human Resources Department. The Company will respond to the employee's accommodation request within two business days. If the Company cannot provide break time or a location as required by law, the Company will provide a written response to the employee. An employee has a right to file a complaint with the Labor Commissioner for any violation pertaining to the employee's right to lactation accommodation.

7.8 Jury Duty

Employees summoned for jury duty will be allowed the necessary unpaid time off from work to perform this civic responsibility. MLS asks employees to give MLS as much notice as reasonably possible of their jury duty. MLS may require the employee to supply documentation from the court confirming the employee's jury duty service. Employees on jury duty must return to work during the employee's regularly scheduled workday if the employee's presence is not required in court and whenever the employee's jury schedule permits.

8 Other Policies

8.1 Right to Inspect, Monitor and Record

The Company reserves the right to inspect any property found in or on Company property. To the maximum extent permitted by law, the Company also reserves the right to inspect any employee property at clients' homes or facilities.

The Company also reserves the right to monitor, access, copy, delete and record information – including but not limited to passwords and codes – and communications received by, transmitted from or stored in Company computers, personal electronic devices (including but not limited to cell phones or tablets), voicemail systems, texts and e-mails. The Company also reserves the right to monitor internet usage on Company technology. To the maximum extent permitted by law, employees consent to audio and video monitoring and recording of their activities and communications, including but not limited to audio recording of their telephone calls on Company electronic devices, during work hours for the Company.

All Company telephones, voicemail systems, computers, hardware, software, programs and other electronic devices are the property of the Company. Use of Company telephones, computers, and other electronic devices should primarily be for the Company's legitimate business purposes. Personal use should be kept to a minimum. Messages sent or received via Company communication devices including but not limited to those referenced in this policy are not private and should not be considered confidential.

The Company reserves the right to override passwords or codes. Passwords do not ensure confidentiality.

Employees should not send, receive or store any harassing, discriminatory, retaliatory, inappropriate, offensive or illegal messages or material, or any material that violates another

person's or entity's intellectual property or other rights.

Employees who refuse to cooperate in any inspection request from the Company may be subject to discipline up to and including termination.

8.2 Inventions and Creative Works

Employee understands and agrees that work in the course and scope of Employee's work for MLS may create intellectual property rights for MLS protectable by patents, trademarks, servicemarks, copyrights, or trade secrets. Employee agrees that such intellectual property rights shall be owned by MLS, and agrees to execute assignments to convey all such intellectual property rights to MLS. Employee further agrees to provide such reasonable cooperation requested by MLS to document and secure rights in the intellectual property if MLS decides to file for copyright, trademark or servicemark registrations, and or patent applications in the U.S. and in foreign countries; and to support MLS, at no expense to Employee, in litigation and administrative proceedings arising from such intellectual property rights. Employee understands and agrees that work performed in the course and scope of Employee's work for MLS is considered a "work for hire" and or a "work made for hire." If any work performed by Employee during Employee's employment with MLS shall not be considered a "work for hire" and or a "work made for hire" for any reason, Employee agrees to execute and deliver to MLS assignments of all Employee's right, title and interest in and to such work. All work performed by Employee during and in connection with Employee's employment by MLS shall remain the property of MLS at all times.

8.3 Confidential Information

Employees may have access to MLS confidential, proprietary or trade secret information. This information may include but is not limited to client contact, medical, financial or other information; company procedures, pricing or other financial information; employee contact, payroll and other information; computer files, programs and software; legal opinions or memoranda; referral contacts, sources and information; and business development and marketing strategy.

These types of information, and any information not generally known outside MLS and that would be valuable to a competitor, are valuable, confidential and the exclusive property of MLS. Employees must not use or disclose this information either during or after their employment with MLS.

Employees also must not use or disclose any confidential, proprietary or trade secret information of any of their former or concurrent employers in the employees' performance of their work with MLS. MLS strictly prohibits any such use or disclosure of others' confidential, proprietary or trade secret information.

Note: Nothing in this Handbook prevents employees from discussing or disclosing information about unlawful acts in the workplace, such as assault, harassment or discrimination or any other conduct that employees have reason to believe is unlawful.

8.4 Conflicts of Interest

Employees owe a duty of loyalty to MLS in performing work for MLS. Accordingly, during their employment with MLS, to the maximum extent permitted by law, employees must

avoid any actual, perceived or potential conflicts of interest without first disclosing and receiving express written permission from MLS's management. To the maximum extent permitted by law, MLS in its discretion will determine what constitutes an actual, perceived or potential conflict of interest, and employees should contact MLS with any questions about actual, perceived or potential conflicts of interest.

8.5 Financial Transactions with Clients

To the maximum extent allowed by law, employees may not personally accept money, gratuities or other items of value from clients without prior permission from MLS. Employees must report any offers of this nature to MLS. Similarly, employees should not borrow from, engage in personal commercial transactions with, or incur other obligations with clients. Further, MLS personnel must not request special favors, such as gifts or loans, from clients, or inclusion in clients' legal affairs, such as wills or trusts. Such conduct may result in discipline, up to and including termination.

8.6 Employment of Relatives

The Company does not prohibit employment of relatives. However, the Company may prohibit one relative from supervising another relative for legitimate business reasons including but not limited to safety, security, morale, or avoiding conflicts of interest. Further, the related employees' relationship must not adversely affect the Company's workflow, processes or operation.

8.7 Worker's Compensation and Workplace Safety

The Company will comply with all legal requirements regarding worker's compensation procedures and benefits. MLS requires that all employees report all job-related accidents or injuries, regardless of how minor, to a supervisor immediately, whether the accident occurred on or off Company or clients' premises.

In addition to reporting any workplace injury, employees must report any unsafe condition in any location where the employee works to Company management immediately. Compliance with this policy is essential.

This handbook section is not a substitute for, nor does it list all aspects of, the Company's Injury and Illness Prevention Program. Please see Company management for additional information about Worker's Compensation and the Company's Injury and Illness Prevention Program.

Important Note: The descriptions of benefits, such as but not limited to retirement, health or other insurance plans, are intended only as summaries, and do not constitute recitals of all terms, conditions, limitations and exclusions of such benefits or plans. If the summaries contained in this handbook conflict in any way with the official plan documents, the provisions of the official plan documents will control. Employees may obtain and inspect complete policies or official plan documents from Company management.

8.8 Social Media Policy

This Social Media Policy applies to any employee posts online via blogs, social media postings, videos, photos, tweets, status updates, or other forms of online communications or chat

rooms. Creating, maintaining or posting online personally (i.e., not Company business) during your working hours for MLS or on MLS electronic equipment without express prior permission from MLS is prohibited.

If an employee posts online about his or her work with MLS, it is essential that the employee make clear that he or she is speaking personally and not as a Company representative. The simplest way to avoid any confusion is to not mention the Company's name. If employees feel the need to mention the Company's name, they should conspicuously post that they are posting on their own behalf and not as a representative of MLS.

Employees are personally responsible for their online posts and content. Above all, employees should use common sense and good judgment when posting online. Employees also must comply with all applicable laws, regulations and Company policies while online. To the maximum extent allowed by law, employees must not engage online (including but not limited to sending, receiving, or storing messages, emails, texts, videos, photos, posts, comments or other communications) in any unlawful discrimination, harassment, retaliation or other unlawful conduct. Employees also must not post false or defamatory statements online.

Additionally, employees must not disclose confidential, proprietary or trade secret information of MLS, its clients, referral sources, employees, or any other person or entity. This prohibition includes the unauthorized posting, use or disclosure of any MLS copyright, trademark, servicemark, patent or any intellectual property - including unauthorized use of MLS's logo.

MLS reserves the right to monitor social media, blogs, and other online sites. If an employee discovers a social media posting, blog, or other online site that the employee believes violates MLS's policies, the employee should immediately report the social media posting, blog, or other online site to his or her manager or to MLS management. MLS, in its sole discretion, will determine whether social media postings, blogs, or other online postings violate MLS policies pursuant to applicable law.

Violations of this policy may result in discipline, up to and including termination of employment. Notwithstanding anything to the contrary in this policy, none of the provisions in this policy are intended or will be enforced to infringe upon or violate any legally protected rights.

This policy is not intended to and will not be enforced to interfere with or prohibit an employee's communications regarding wages, hours worked, working conditions and or terms of employment. Employees have the right to engage in or not engage in such activities.

8.9 Solicitation and Distribution

To avoid unnecessary annoyances and work interruptions, to the maximum extent permitted by law, solicitation for any purpose during working time is prohibited. Similarly, to the maximum extent permitted by law, distribution of literature for any purpose, other than that required for normal business operation, during working time and or on working areas of Company property is prohibited. To the maximum extent permitted by law, persons not employed by the Company may not solicit for any purpose or distribute literature on Company property at any time.

For the purposes of this policy, the phrase "working time" includes the work time of both the person doing the solicitation or distribution, and the person to whom it is directed. However, "working time" does not include break or meal periods, if any, or other periods during the work

day when employees are not performing their job duties.

8.10 Bulletin Boards

To the maximum extent allowed by law, Company bulletin boards are to be used exclusively for Company business and advisories about applicable federal, state and local laws, regulations and requirements. Accordingly, to the maximum extent allowed by law, employees who wish to post any materials or notices on Company bulletin boards must specifically request advance permission from the Company in writing prior to posting anything on the bulletin boards, and employees cannot post anything on Company bulletin boards without receiving express written permission from Company management before posting any such materials or notices.

8.11 Standards of Conduct and Discipline

Each employee has an obligation to observe and follow the Company's policies and to maintain proper standards of conduct at all times. If an individual's behavior interferes with the orderly and efficient operation of the Company, the Company may take corrective disciplinary measures.

Disciplinary action may include but is not limited to verbal warnings, written warnings, suspension with or without pay, and/or discharge. The appropriate disciplinary action imposed will be determined by the Company as allowed by law. The Company does not guarantee that one form of action will necessarily precede another or that any or all forms of discipline will occur prior to termination.

MLS may impose any discipline, up to and including immediate termination, if an employee's conduct warrants such action. The following actions, although not an inclusive list, may constitute grounds for immediate suspension or termination from MLS: unsatisfactory, unprofessional or unethical work performance; insubordinate behavior; theft, unauthorized removal, or intentional destruction or damage of Company, clients' or others' property; breach of this handbook's Confidential Information or other policies; falsifications, misrepresentations, tampering with, or material omissions in reports, time-keeping or other records, employment applications, or other documents; using or possessing alcohol while at work, or possessing, using, distributing, manufacturing, dispensing, purchasing or selling illegal drugs while at work, or reporting to work under the influence of alcohol or illegal drugs; violations of laws, regulations or Company policies while working; unlawful harassment or actual or threatened violence; unexcused tardiness or absenteeism; job abandonment; or other misconduct.

Note: The specific instances of misconduct listed in this handbook are only examples and do not constitute a complete list of the reasons the Company may discipline or terminate an employee. Rather, in the sole discretion of the Company as allowed by law, an employee who engages in misconduct or whose performance is unsatisfactory may be subject to disciplinary action up to and including termination. Moreover, employment with the Company is at-will and may be terminated for any or no reason with or without notice as allowed by law.

8.12 Termination of Employment and Return of MLS Property

MLS reserves the right to conduct an exit interview with employees. Further, either during this meeting or at any time, MLS encourages employees to raise any concerns about their

employment, or their reasons for leaving MLS, with MLS management.

Upon an employee's termination of employment with MLS or at any time upon MLS's request, the employee must return all MLS and client property – in whatever form, medium or format (paper, electronic or otherwise) – to MLS. This return of property requirement includes but is not limited to all client, employee, referral source, or other files, memoranda, documents, records, contact information, databases, spreadsheets, computer programs, passwords, copies or notes of the aforementioned, credit or debit cards, keys, and identification cards or badges in the employee's possession or control.

Employees also must not retain copies or notes of such property or information. Specifically, employees must destroy and permanently delete all copies or notes (in whatever format) of MLS's and clients' confidential, proprietary or trade secret information in their possession, including but not limited to such information on their personal computers, cellular telephones, tablets or other electronic equipment.

Additionally, upon the termination of employee's employment with MLS, employee agrees to clear all expense accounts and repay everything employee owes to MLS.

8.13 Employment References

The Company will not honor any verbal requests for references. All requests must be in writing and on company letterhead. Generally, MLS will only confirm employees' dates of employment and job titles.

Under no circumstances should an employee provide another individual with reference information regarding current or former employees of the Company without prior express approval from Company management. If you receive a request for reference information, please forward it to Company management.

9 Employee Handbook Acknowledgement

I acknowledge and agree that I have received the MLS Employee Handbook, and that the policies in this handbook govern my employment with the Company.

I acknowledge and agree that the Company may unilaterally change, rescind, delete or augment the provisions of this handbook – other than the employment at-will provision – in the Company’s sole discretion with or without advance notice. However, the Company will reasonably attempt to notify employees of policy changes if and when they occur.

I further acknowledge that this handbook supersedes and replaces prior versions of the handbook. No prior or other oral or written understanding shall be of any force or effect with respect to the subjects referenced in this handbook.

I also understand and agree that the handbook cannot and does not address every situation that may arise. Thus, I understand and agree that it is my responsibility to immediately report any questions or concerns regarding my employment with the Company to Company management.

I understand, acknowledge and agree that my employment with the Company is at-will. To the maximum extent allowed by law, either the Company or I can terminate my employment with the Company with or without cause, and with or without notice, at any time. I understand that no employee except the Company’s President has the authority to enter into any employment agreement with an employee for a specified period of time. Additionally, I understand that the Company’s President can alter an employee’s at-will status only by signing a written agreement with the employee that expressly specifies the Company’s intent to employ the employee for a specified period of time.

I acknowledge, understand and agree that I have an obligation to read and understand the policies, rules and information in the handbook, and that I will review the material in the handbook. I agree to adhere to the terms, conditions and policies in the handbook. I understand and agree that my failure to follow the policies outlined in the handbook may result in disciplinary action against me up to and including possible termination of employment, and pursuit of civil or criminal prosecution if warranted.

Print Name

Signature

Date